

CADE v. TechBrasil Consortium

Brazilian antitrust · Lei 12.529/2011 · Portuguese-language review

PLATFORM	DOCUMENTS	DATE RANGE
Everlaw	500 · Brazilian Portuguese	January 3, 2021 – December 28, 2022

Training matter. The parties, events and documents are fictional and exist for AA Team review practice.

1 Matter overview

Brazil's competition authority, CADE (Conselho Administrativo de Defesa Econômica), opened Administrative Process No. 08700.004521/2022-31 against TechBrasil SA and three alleged co-conspirators, Nexatel Ltda, DataComm Brasil and SulTech Sistemas, for a price-fixing cartel, market allocation, bid-rigging on government contracts and related violations of Lei 12.529/2011. TechBrasil SA is our client, and we are defending it. A leniency agreement negotiation is under way.

The documents are in Brazilian Portuguese; this protocol is in English. Use translation tools for unfamiliar terms. Key terms are glossed below.

2 Parties and custodians

ROLE	NAME
TechBrasil SA · our client	CEO Ricardo Almeida, CFO Mariana Costa, GC Dr. Paulo Ferreira, CTO Fernanda Lima, Dir. Comercial Henrique Nobre, Dir. Gov. Affairs Claudia Ramos
Nexatel Ltda · co-conspirator, leniency applicant	CEO Rodrigo Vaz
DataComm Brasil · co-conspirator	Dir. André Santos
CADE · competition authority	Superintendência-Geral

3 Coding fields on Everlaw

These are the values the coding panel offers. Every document gets all five fields, and all five are graded.

FIELD	VALUES
Responsiveness	Responsive · Non-Responsive
Privilege	Not Privileged · LPP (ACP) · LPP + WP
Issues	Select every issue that applies
Action	Produce · Withhold
Confidentiality	Standard · Highly Confidential · Attorneys Eyes Only

4 How to code

IF THE DOCUMENT IS...	RESPONSIVENESS	PRIVILEGE	ACTION	CONFIDENTIALITY
Not responsive to any request	Non-Responsive	Not Privileged	Produce *	Standard
Responsive, with no legal advice in it	Responsive	Not Privileged	Produce	Highly Confidential or Standard (see 8)
Responsive, and carries legal advice from counsel	Responsive	LPP (ACP)	Withhold	Attorneys Eyes Only
Responsive, and counsel's advice or analysis was prepared because of the investigation or litigation	Responsive	LPP + WP	Withhold	Attorneys Eyes Only

- * On this platform Action only records whether a document is withheld for privilege. Responsiveness is what keeps a non-responsive document out of the production, so its action stays at Produce. This is not how Casepoint works; do not carry the habit across.
- Issues go on responsive documents only. A non-responsive document never carries an issue.
 - Every privileged document is withheld and designated Attorneys Eyes Only. No exceptions in this matter.
 - Escalate and Redact are on the panel but are never the correct final call in this matter. If you are unsure, escalate (section 10); do not submit a placeholder.

5 Issue tags

#	TAG (PT)	ENGLISH	DEFINITION
1	Fixação de Preços	Price fixing	Horizontal agreement between competitors to fix, raise or stabilise prices (Art. 36 §3 I).
2	Divisão de Mercado	Market allocation	Agreement to divide customers, territories or products between competitors.
3	Fraude em Licitação	Bid rigging	Coordinated manipulation of competitive bidding, especially government tenders (pregões, licitações).
4	Troca de Informações	Information exchange	Sharing competitively sensitive information (prices, costs, customers) with competitors.
5	Coord. de Cartel	Cartel coordination	General cartel organisation, meetings and implementation of collusive agreements.
6	Abuso Posição Dom.	Abuse of dominance	Abuse of a dominant market position (Art. 36 §2).
7	Fraude Contratos Pub.	Government contract fraud	Fraud on public procurement (Lei 8.666/93 and Lei 12.529).
8	Acordo de Leniência	Leniency agreement	Documents about CADE leniency negotiations (Art. 86). See the alert below.
9	Priv. Adv.-Cliente	Attorney-client privilege	Tag EVERY privileged document with this issue, and nothing else. See section 7.
10	Produto Jurídico	Work product	Only legal analysis authored by counsel. See section 7.
11	Corresp. Regulatória	Regulatory correspondence	Correspondence with CADE, ANATEL, ANPD or other Brazilian regulators.
12	Conf. Terceiros	Third-party confidential	Confidential information belonging to clients or suppliers.
13	Dados LGPD	Personal data (LGPD)	Personal data subject to Brazil's data protection law, the LGPD.
14	Segredo Comercial	Trade secret	Proprietary business information: pricing models, customer data, technology roadmaps.
15	Whistleblower	Whistleblower protection	Internal or regulatory whistleblower disclosures.
16	Resp. Diretores	Director liability	Personal liability of individual directors and officers (Art. 37).
17	Gun-Jumping	Gun-jumping	Implementing a merger before CADE approval (Art. 88).
18	Obstrução	Obstruction	Destruction or concealment of evidence (Art. 340 Código Penal and CADE sanctions).

6 Attorney and law-firm screen

A name on this list does not make a document privileged. It tells you to read closely for legal advice.

NAME	ROLE	FIRM / DOMAIN
Dr. Paulo Ferreira	General Counsel, TechBrasil	In-house (advogado empregado)
Dr. Marcos Teixeira	Sócio externo (external partner)	teixeiralaw.com.br

7 Privilege

- Brazil recognises attorney-client privilege (sigilo profissional) under the OAB Statute, Art. 7. Communications with in-house counsel (advogado empregado) may receive less protection than those with outside counsel.
- CADE can compel documents notwithstanding a privilege claim. Flag every potentially privileged document for senior review.
- Issue 9 rule: every privileged document, LPP (ACP) or LPP + WP, is also tagged Issue 9. No other document is.
- Issue 10 rule: tag Issue 10 only for legal analysis written by counsel, such as a strategy memo or a liability analysis. A business-side update ABOUT a privileged matter can be LPP + WP without being counsel's work product; it does not get Issue 10.

8 Confidentiality

DESIGNATION	USE IT FOR
Attorneys Eyes Only	Every withheld privileged document.
Highly Confidential	Non-public internal information whose disclosure would harm the company: internal executive and technical communications about the core events, engineering and trading internals, risk data, commercial and pricing strategy, HR and personnel matters.
Standard	Government and regulator documents, routine recurring records, widely distributed material, and every non-responsive document.

The call turns on content. It does not follow the custodian, and it does not follow how many issues a document hits.

9 Matter alerts

Leniency

Documents about the leniency negotiation (Issue 8) are highly sensitive and may need separate privilege logging. Do not code them Produce without senior attorney review.

Language guidance

pregão = government e-auction · licitação = government tender · cartel = cartel · reajuste = price adjustment · alinhamento = alignment (a cartel term for coordination) · leniência = leniency · processo administrativo = administrative proceeding

10 Escalation and the QC standard

STEP	WHO	WHEN
1	Glory or Junior	Your first go-to for every question.
2	Zabron or Simon	If Glory and Junior are unavailable or need backup.
3	Aaron	If it is still unclear after steps 1 and 2.
4	PM / RM	If Aaron has no clear answer, or the question is client-level.

- Never guess silently on a gray area. While you wait for an answer, protect the document: treat it as privileged and do not release it.
- Ask a good question: the document ID; short context (who is writing to whom, about what); your lean and why; and what makes it difficult.

QC TRACK STANDARD	
Accuracy	Measured as defects per 1,000 documents. The target is zero. One defect per thousand still scores 95.
Pace	60 documents per hour, sustained, done properly.
Responsiveness	Reply to supervisor messages within 2 minutes while on shift.
The rule that outranks the others	Never trade privilege accuracy for speed.